

26VECV00033 26VECV00033

County: los-angeles

Division: Civil Law and Motion

Department: 107

Hearing date: 2026-09-22

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Case Number: 26VECV00033 Hearing Date: September 22, 2026 Dept: 107

SUPERIOR COURT OF THE STATE OF
CALIFORNIA

COUNTY OF LOS ANGELES

NORTHWEST DISTRICT

Ricky

Caruso,

Plaintiff,

v.

Zoya

O. Orlova, et al.

Defendant.

Case Number Department

26VECV00033 107

COURT'S [TENTATIVE]

ORDER RE:

Motion for Order Authorizing Service

of Summons via Electronic Mail and
Other

Electronic Technology

[THE
FOLLOWING IS A TENTATIVE RULING IN THE ABOVE CASE]: DENY.

I.
BACKGROUND

This
is a motor vehicle negligence case. On January 5, 2026, Plaintiff filed his
complaint against Defendants Zoya O. Orlova, David Odle, and Does 1 through 10,
inclusive. Plaintiff alleges that
Defendants were negligent and were the proximate cause of his injuries on January
4, 2025 on CA-27 northbound near 5550 CA-27, Woodland Hills, CA 91367.

II.
LEGAL
STANDARD

Service of summons is generally effected via
personal service, substituted service including first-class mailing, mail
service with acknowledgment of receipt, and publication,
among other methods. (See Code Civ. Proc., §§ 415.10-415.95.)

“In lieu of personal delivery of a copy of the summons and
complaint to the person to be served as specified in Section 416.10, 416.20,
416.30, 416.40, or 416.50, a summons may be served by leaving a copy of the
summons and complaint during usual office hours in his or her office or, if no
physical address is known, at his or her usual mailing address, other than a
United States Postal Service post office box, with the person who is apparently
in charge thereof, and by thereafter mailing a copy of the summons and
complaint by first-class mail, postage prepaid to the person to be served at
the place where a copy of the summons and complaint were left. When service
is effected by leaving a copy of the summons and complaint at a
mailing address, it shall be left with a person at least 18 years of age, who
shall be informed of the contents thereof. Service of a summons in this manner
is deemed complete on the 10th day after the mailing.” (Code Civ.

Proc., § 415.20 subd (a).)

"If a copy of the summons and complaint cannot with reasonable diligence be personally delivered to the person to be served, as specified in Section 416.60, 416.70, 416.80, or 416.90, a summons may be served by leaving a copy of the summons and complaint at the person's dwelling house, usual place of abode, usual place of business, or usual mailing address other than a United States Postal Service post office box, in the presence of a competent member of the household or a person apparently in charge of his or her office, place of business, or usual mailing address other than a United States Postal Service post office box, at least 18 years of age, who shall be informed of the contents thereof, and by thereafter mailing a copy of the summons and of the complaint by first-class mail, postage prepaid to the person to be served at the place where a copy of the summons and complaint were left. Service of a summons in this manner is deemed complete on the 10th day after the mailing." (Code Civ. Proc., § 415.20 subd (b).)

Plaintiff asks for an order to serve Defendant by electronic mail, relying on Code of Civil Procedure section 413.30. That section provides: "[w]here no provision is made in this chapter or other law for the service of summons, the court in which the action is pending may direct that summons be served in a manner which is reasonably calculated to give actual notice to the party to be served and that proof of such service be made as prescribed by the court." (Code Civ. Proc., § 413.30.)

"Thus, when none of the four usual methods of service is available, the trial court has the discretion to authorize service by another means." (Crane v. Dolihte (2021) 70 Cal.App.5th 772, 786, 794-95 [declining to direct the trial court to implement a particular method of service in a personal injury case between two prisoners, but affirming the court's ability to "identify an innovative method for effecting service" under section 413.30]; see also Cohen v. Board of Supervisors (1971) 20 Cal.App.3d 236, 237-39 [allowing plaintiffs in marital actions who could not afford service by publication costs to seek service under section 413.30, which could include "service at a defendant's last known address and posting" as described in Boddie v. Connecticut (1971) 401 U.S. 371].)

"There is no one test

for adequacy of notice, but the United States Supreme Court instructs us to look at the realities of the case in order to determine whether the notice given was reasonably calculated to inform people of the pendency of the proceedings affecting their interests.” (People ex rel. Reisig v. Broderick Boys (2007) 149 Cal.App.4th 1506, 1519.) Actual notice is not required for a notice procedure to be constitutional; neither are “heroic efforts” required. (Id.) Instead, the method “must be such as one desirous of actually informing the absentee might reasonably adopt to accomplish it.” (Id. [quoting Jones v. Flowers (2006) 547 U.S. 220, 229].)

III.

DISCUSSION

Here, efforts to personally serve Defendant Zoya O. Orlova (“Orlova”) have not been exhausted. (Cade Decl., Exh. 1, 6.) Code of Civil Procedure section 413.30 provides that “[i]f a plaintiff, despite exercising reasonable diligence” has been unable to serve the summons by any of the four usual methods of service—personal, substitute, mail with acknowledgement, and publication—the court may allow the summons be served in “a manner that is reasonably calculated to give actual notice to the party to be served, including by electronic mail or other electronic technology.” (Id., § 413.30, subd. (a)(1); Crane v. Dolihite (2021) 70 Cal.App.5th 772, 786.) A plaintiff seeking to establish reasonable diligence must “set forth facts detailing all attempts to serve the defendant by each of the methods prescribed by statute, including facts demonstrating why each method was unsuccessful at every address or location where the defendant is likely to be found.” (Code Civ. Proc., § 413.30, subd. (a)(2).) While it seems that substituted service might be futile here as there doesn’t seem to be a current address for Orlova (Cade Decl., ¶¶ 3, 11, 12), there is no evidence that Plaintiff attempted service by publication.

As Plaintiff has not exhausted efforts to personally serve Orlova, the motion is DENIED.

IV.

CONCLUSION

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The motion is DENIED.

Dated: September
22, 2026 _____ Hon.
Eric Harmon

Judge of the Superior Court